

JUSTIFICATION FOR AN EXCEPTION TO FAIR OPPORTUNITY

1. Contracting Activity: Department of Veterans Affairs
Office of Procurement, Acquisition, and Logistics
Technology Acquisition Center
23 Christopher Way
Eatontown, NJ 07724

2. Description of Action:

The proposed action is for Brand Name, Plum Enterprise Starlink Ready (SR) Mini with 5G dual modem and Plum Power Bank (PPB) under a Firm-Fixed-Price Delivery Order issued under the National Aeronautics and Space Administration (NASA) Solutions for Enterprise-Wide Procurement (SEWP) V, Government Wide Acquisition Contract (GWAC). The hardware is required to assist the Office of Emergency Management (OEM) with improving their demand for deployable capabilities during disaster and continuity of operation events.

3. Description of the Supplies or Services:

The Department of Veterans Affairs (VA), Office of Information and Technology (OI&T), Office of Emergency Management (OEM) requires the purchase of Brand Name, PLUM Laboratories, Incorporated (Inc.) ENTSR5002: Plum Enterprise SR Mini with 5G dual modem and Plum Power Bank (PPB). The patented Plum Enterprise® SR Mini provides cellular and satellite connectivity with dual 5G E3000 and MC400-5GB modems and an integrated storage and power system for a Mini Starlink in a single, highly ruggedized Plum Case, with proprietary long-range Plum Antenna Array. The hardware includes, a proprietary lightweight, intelligent Plum Power Bank™ with four Plum li-ion cylinder smart battery packs and a waterproof 50' ethernet cable. Designed and built in the USA by Plum Laboratories. The hardware has embedded operating system (OS) software that does not require contracted managed services, nor does it require contracted installation services. Identified VA personnel will provide the necessary installation services, for PLUM Laboratories, Inc. Hardware. PLUM Laboratories, Inc., hardware products shall be shipped to the receiving destination and deployed on demand in response to disaster and continuity of operation events.

The hardware delivery will be 30 days from the time of award. The total estimated value of the proposed action is [REDACTED].

4. Statutory Authority:

Pursuant to Federal Acquisition Regulation (FAR) 16.507-7 the following brand name requirement is being justified and approved as an exception to fair opportunity under the statutory authority of Section 41 U.S.C. 4106(c)(2) as implemented by FAR 16.507-6(b)(2) entitled "Only one awardee is capable of providing the supplies or services required at the level of quality required because the supplies or services ordered are unique or highly specialized".

5. Rationale Supporting Use of Authority Cited Above:

The OEM's mission requires rapidly deployable, resilient satellite broadband with compact footprint, integrated access, and environmental ruggedization to sustain voice, video, and data during disasters and outages. Plum Enterprise SR Mini with 5G dual modem and PPB is the only proprietary technology that delivers seamless connectivity in remote or temporary locations that can ensure the OEM is disaster response ready, as well as consistent and supportive of the National Disaster Recovery Framework (NDRF). Additionally, Plum Enterprise SR Mini with 5G dual modem and PPB suite consists of product licenses and maintenance support that provides a unique solution, because it is compatible with the existing system and aligns with the VA's current business needs. OI&T and OEM have been using Plum Enterprise SR Mini with 5G dual modem and Plum Power Bank hardware cases since 2016 and as such, its reliability and sustainability have already been proven. Reliable cellular network connectivity is a critical component for disaster recovery response operations.

The Plum Enterprise SR Mini with 5G dual modem and PPB hardware is a foundational component that enables PLUM hardware cases and Cradlepoint routers contained within them, plus modems to have network connectivity during disaster recovery operations. It is a network building block that enables these systems to avoid major patient safety issues. If a different brand name were chosen, VA would lose the capability of the Plum Enterprise SR Mini with 5G dual modem and PPB, which provides essential cellular network connectivity during disaster recovery operations. This would be an emergency management safety issue as no other cellular antenna array has the proven capabilities of mitigating risk of disasters associated with causing degrading cellular network connectivity. Plum Laboratories, Inc., is the only company that offers highly sensitive antennas with abilities to provide signals coverage from distant cellular network available in the regions where emergencies occur with enough reliable cellular connections to maintain connectivity during disaster events that cause normal network disruptions.

The OEM department has had several other antennas array hardware deployments, such as Dell, Ansys, Hermtac, and Altium for clinics in remote locations. These testing experiments resulted in having inoperable cellular signals at those testing sites. Upon testing the Plum Enterprise SR Mini with 5G dual modem and PPB at those same clinic sites, it was proven that the inoperable cellular signal was not the case with Plum Enterprise SR Mini with 5G dual modem and PPB. The Plum Enterprise SR Mini with 5G dual modem and PPB hardware cases did not only receive marginal signal strength, but it also had suitable enough speeds to support the entire clinic operations. Likewise, the OEM has deployed Plum Enterprise SR Mini with 5G dual modem and PPB hardware cases at a mobile medical unit. There, the Plum Enterprise SR Mini with 5G dual modem and PPB were able to pull a usable signal inside of the medical vehicles. The preexisting cellular routers installed in the vehicles were using paddle antennas which did not provide reliable signal strength. Based upon this analysis, only PLUM Laboratories, Inc. Brand Name, Plum Enterprise SR Mini with 5G dual modem and PPB or one of its authorized resellers can provide the critical functionalities for continued network signal that supports the essential disaster recovery needs of the Government. Likewise, the estimated cost for an alternative solution is between [REDACTED]. Additionally, based on prior life cycle impact level determinations, the time required to analyze an alternate solution is estimated to be between [REDACTED]. If this

purchase is not made, VA will be unable to effectively deploy hardware in response to disaster and continuity of operation events, which in turn will have a direct negative impact on the delivery of health services for Veterans.

6. Efforts to Obtain Competition:

Market research was conducted, details of which are in section 8 of this justification. This effort did not yield any additional products that could meet the Government's requirements. However, the undersigned VA technical representative determined that limited competition is available among authorized resellers for Brand Name, Plum Enterprise SR Mini with 5G dual modem and PPB. In accordance with FAR 16.507-7(c)(i)(ii) this justification will be provided with the solicitation to all appropriate NASA SEWP V GWAC holders. Furthermore, in accordance with FAR 5.201(c)(3), FAR 16.507-6(f), and FAR 16.507-7(c)(i)(ii), the award notice for this action will be synopsisized on the Contract Opportunities website and this justification will be made publicly available within 14 days of award.

7. Actions to Increase Competition:

The Government will continue to conduct market research to ascertain if there are changes in the marketplace that would enable future actions to be competed.

8. Market Research:

The Government's technical experts conducted market research in December 2025, by testing other satellite terminals, paddle antennas, LEO terminal options against field constraints (size, ruggedization, deployment time, power budgets, and integrated access). The Plum Enterprise SR Mini with 5G dual modem and PPB, collectively met all critical requirements for VA emergency deployments. Published OEM specifications were used to validate environmental and performance criteria; the kit content list confirms no dependency on third-party radios for initial access, reducing points of failure.

Additionally, planning documents for FY26 hardware actions reflect the requirement to acquire Plum Enterprise SR Mini with 5G dual modem and PPB for OEM field use, ensuring consistency with the broader hardware refresh and deployment plan.

The Government previously evaluated the alternative solutions by Dell, Ansys, Hermtac, and Altium and a demonstration was provided. The versions of Dell, Ansys, Hermtac, and Altium Brand Name, alternative products, were tested, to make an initial determination regarding whether this was a viable alternative. It was determined that it would require the procurement and setting up of additional installation and maintenance services to include the purchase of licenses to satisfy all VA requirements. These alternative solutions would need to be procured, deployed, and integrated with other products. Therefore, they do not have the interoperability and compatibility requirements needed to meet all the VA's requirements.

Based on the information above, the Government's technical experts have determined that only, Plum Enterprise SR Mini with 5G dual modem and PPB can meet all of VA's needs.

9. Other Facts: None

